



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY: *[Signature]*

MA. JULINA B. JUTILLA
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 13TH SPECIAL SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JANUARY 11, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

ORDINANCE NO. 01
Series of 2024

**"AN ORDINANCE PRESCRIBING THE RATE OF WAGES FOR CONTRACT OF SERVICE, JOB ORDER
WORKERS AND SUPPORT SERVICES TO THE LOCAL GOVERNMENT UNIT OF CARMEN, SURIGAO DEL
SUR"**

Author : Hon. Carmelito E. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

Every Local Government Unit thru its Local Chief Executive is authorized to enter into Contract of Service (COS) and Job Order (JO) workers for services related or incidental to their respective functions and operations. On the other hand, the Legislative Body has the power to determine the

positions and salaries, wages, allowances and other emoluments and benefits of officials and employees paid wholly or mainly from municipal funds. Having these powers, the need to prescribe the rate of wages for Contract of Service and Job Order workers is deemed imperative to ensure the protection and equality for the workers hired by the Local Government Unit of Carmen, Surigao del Sur. Hence, this ordinance.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in session assembled, that:

SECTION 1. Title- This ordinance shall be known as "An Ordinance Prescribing the Rate of Wages for Contract of Service, Job Order Workers and Support Services to the LGU-Carmen, Surigao del Sur 2024."

SECTION 2. Purpose- It is the purpose of this ordinance to prescribe Rate of Wages for Contract of Service, Job Order workers and support services of the LGU-Carmen, Surigao del Sur.

SECTION 3. Coverage- This ordinance shall cover all Contract of Service (COS) and Job Order (JO) workers hired by of the LGU- Carmen, Surigao del Sur.

SECTION 4. Definition of Terms- For purposes of this ordinance, the following terms or words shall mean or be understood as follows:

- 1) Contract of Service- refers to the engagement of the services of an individual, private firm, other government agency, non-government agency or international organization as consultant, learning service provider or technical expert to undertake special project or job with a specific period.
- 2) Job Order- refers to piece of work (pakyaw) or intermittent or emergency jobs such as clearing of debris on the roads, canals, waterways etc. after natural/ man-made disasters, plumbing, electrical and the like. It may also include support services like janitorial, security, driving, data encoding, equipment and grounds maintenance, and other services that support the day-to-day operations of LGU- Carmen, Surigao del Sur. These jobs as short duration and for a specific piece of work.
- 3) Municipal Coordinators Team- refers to the group of people who manage/facilitate all activities and implementation of KALAHI-CIDSS project within the municipality.
- 4) Traffic Enforcer- a Job Order Worker assigned to direct at the national highway for the safety of pedestrians and motorist.
- 5) Tax Mapper- a Job Order Worker assigned as Tax Mapper.
- 6) Computer Operator- a Job Order Worker who possesses computer skills.
- 7) Grass Cutter Operator- a Job Order Worker with expertise on operating the grass cutter and all-around utility worker.
- 8) Driver/ Rescue Driver- a Job Order Worker assigned as driver of LGU vehicles.
- 9) Garbage Collector- a Job Order Worker assigned to collect garbage under the SWM project of the MENRO.

- 10) AutoCAD Operator- taking verbal direction and implementing into sketches and calculations to produce the final work. Producing plans, elevations, technical details and building layouts.
- 11) AT/Fisheries and Organic Focal- a Job Order Worker assigned to ensure the operations run smoothly- by maintaining sustainable yields and monitoring natural resources. These workers play an important role in aquatic conservation. These workers play an important role in aquatic conservation.
- 12) Forest Guard- do the important work of protecting the forest.
- 13) Rescuer- a person who saves someone from a dangerous or difficult situation.

SECTION 5. Contract of Service

- 1) Individual Contract of Service- the Local Government Unit of Carmen, Surigao del Sur may enter into Contract of Service with individuals as consultants/contractors/ advisers subject to the following guidelines:
 - 1.a) The term of contract between the LGU- Carmen, Surigao del Sur and the individual consultant/contractor/adviser shall be for a maximum period of one (1) year renewable at the option of the agency but in no case shall exceed the term of the latter.
 - 1.b) Engaging the services of the individual consultant/ contractor/ adviser shall be subject to the pertinent provisions of RA 9184 and Its Implementing guidelines as applicable, and the existing budgeting, accounting and auditing rules and regulations.

SECTION 6. Job Order- the Local Government Unit of Carmen, Surigao del Sur may hire Job Order workers subject to the following conditions:

- 1) The services of the Job Order worker are either paid according to an agreed contract amount for the piece of work or on a daily wage basis.
- 2) The contracting services of Job Order workers shall be subject to the pertinent budgeting, accounting and auditing rules and regulations.

SECTION 7. Limitations-

- 1) Hiring under Contract of Service shall be limited to consultants, learning service provider, and/or other technical experts to undertake special project or job within the specific period. The project or job is not part of the regular functions of the LGU- Carmen, Surigao del Sur, or the expertise is not available in the latter Local Government Unit, or it is practical or more expensive for the LGU to directly undertake the service provided by the individual contractor.
- 2) Hiring of Job Order workers shall be limited to emergency or intermittent work defined under Section 4 of this ordinance.
- 3) Contract of Service and Job Order workers should not, in any case, be made to perform functions which are part of the Job Description of the Local Government of Carmen, Surigao del Sur regular employees.
- 4) Contract of Service and Job Order workers should not be designated to positions exercising control or supervision over regular and career employees.

- 5) The services of the Contract of Service and Job Order workers are not covered by Civil Service Law and rules, thus, not creditable as government service. They do not enjoy the benefits enjoyed by the government employees such as, leave, RATA, PERA and thirteenth month pay.

SECTION 8. Payment of Service under Individual Contract of Service-

An individual hired through Contract of Service shall receive a daily wage of Five Hundred Pesos (Php500.00), subject to the provisions of RA 9184 and Its Implementing Rules and Regulations.

The Environment Economic Outsourced Adviser under the Office of the Municipal Mayor shall receive the fixed wage in the amount of Twenty- Five Thousand Pesos (Php25,000.00) every month.

The Technical Contract of Service workers from the Office of the CaSAAD shall receive a fixed wage in the amount of Eighteen Thousand Pesos (Php18,000.00) every month.

SECTION 9. Payment of Services under Job Order-

Individuals hired through Job Order shall be paid wages equivalent to the following:

- | | | |
|---|---|---|
| 1) Meat Inspector Alternate, Utility Worker (Slaughterhouse), AutoCAD Operator/Designer/ AT/Fisheries and Organic Focal | - | Four Hundred Fifty Pesos (Php 450.00) /day |
| 2) Municipal Coordinating Team | - | Four Hundred Pesos (Php 400.00) /day |
| 3) ADAC/CBDRP Focal, RAO System Operator & Technical Staff, BREQS Operator & Technical Staff, Tourism Assistant, Traffic Enforcer, Driver, Artificial Breeding Center Worker, Nursery Aide, Mangrove Maintenance, Grass Cutter Operator/Utility | - | Four Hundred Pesos (Php 400.00) /day |
| 4) Rescuer/ Forest Guard | - | Three Hundred Fifty Pesos (Php350.00) /day |
| 5) Job Order Workers (Clerk) | - | Three Hundred Fifty Pesos (Php 350.00) /day |
| 6) Job Order Workers (Local Economic Enterprise) | - | Three Hundred Fifty Pesos (Php350.00) /day |

SECTION 10. Transitory Provisions

The Local Government Unit of Carmen, Surigao del Sur may renew the individual contracts of existing Contract of Service or Job Order workers until the end of the duration of the contract. Thereafter, the hiring of Contract of Service and Job Order workers shall be in accordance with the provisions of this ordinance. However, those rehired Contract of Service and Job Order workers who have rendered service effective January 1 prior to the adoption of this ordinance shall receive the rate of wages prescribed in this ordinance subject to the availability of funds.

Existing Contract of Service and Job Order workers shall be given priority in the appointment by the Local Government of Carmen, Surigao del Sur to its vacant positions provided that these workers meet the appropriate eligibility and other qualification requirements for the position subject to the existing Civil Service law and rules.

SECTION 11. Repealing Clause- All ordinances, resolutions, rules and regulations inconsistent with or contrary to the provisions of this ordinance are hereby repealed, amended or modified accordingly.

SECTION 12. Separability Clause- The provisions of this ordinance are hereby declared separable and if one or more provisions are held invalid or unconstitutional, the remainder or any provision hereof not affected, shall remain valid and effective.

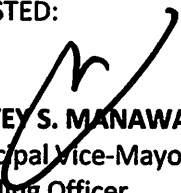
SECTION 13. Effectivity- This Ordinance shall take effect immediately upon approval.

ENACTED this 11th day of January 2024 at Carmen, Surigao del Sur.

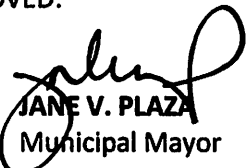
I HEREBY CERTIFY to the correctness of the foregoing ordinance


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

ATTESTED:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor